



File No.: EXP202406577

RESOLUTION OF TERMINATION OF THE PROCEDURE BY VOLUNTARY PAYMENT

From the procedure initiated by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: On October 29, 2024, the Director of the Spanish Agency for Data Protection agreed to initiate sanctioning proceedings against A.A.A. (hereinafter, the respondent), through the Agreement transcribed below:

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File No.: EXP202406577

AGREEMENT TO INITIATE SANCTIONING PROCEDURE

From the actions taken by the Spanish Agency for Data Protection and based on the following

FACTS

FIRST: B.B.B., acting in the name and representation of his minor son C.C.C. (hereinafter, the claimant), filed a complaint with the Spanish Agency for Data Protection on April 18, 2024. The complaint is directed against A.A.A. with NIF ***NIF.1 (hereinafter, the respondent), based on the following facts:

The claimant states that his minor son (16 years old) "has been captured by the video surveillance system of the respondent's facility, and a recording from that system has been distributed to third parties. Subsequently, he has been contacted in a threatening manner via WhatsApp, showing images and a recording from the aforementioned video surveillance system, having filed a complaint with the Civil Guard."

Along with the complaint, he provides:

- Proof of representation of the minor signed by him.
- Complaint filed with the Civil Guard on February 16, 2024, for an alleged crime of threats that occurred on February 16, 2024, in Valdemoro (Madrid) and originating from two email accounts detailed in the complaint, in which it is stated: "They have your personal data in full, with your first and last name, or you give me my things that you have stolen or I will go back to the barracks to report that we are investigating your Instagram photos... now I have more information about you..." and "...talk to me because I have my complaint with photos and videos, so there are two paths: either we reach an agreement or I go and report since I have all your data."

On February 28, 2024, the claimant submitted a first complaint regarding the same facts, which was not admitted for processing as the representation granted to the claimant by the affected person (minor under 16 years old) was not accredited.

The facts referred to were as follows:

"The food establishment facilitates the recording of my 16-year-old son to two unauthorized persons without being within their competence. The image and video of my son are circulating on networks and among individuals. I report that an illegality has been committed regarding image and data protection to two individuals on the street without an order from the authority. We are afraid of the images circulating on networks and among individuals; my son has suffered threats, one of which is that they have his image thanks to the establishment that facilitated it even at the moment of showing them the images, they allowed recording from their phone."

To this complaint, he attached:

- Image of a chat from the account ***USER.1, in which it states: "... we have recordings and your full name... with your full name to report because they are looking for you." In addition to these messages, the chat contains two photographs of the faces of two minor males, the same ones appearing in the video.
- Video showing the image of a monitor, on a white piece of furniture and inside an establishment, displaying two minor males purchasing something at the respondent's establishment, and whose image was recorded by the video surveillance camera located near the cash register where payments are made. The video confirms that the images of the two males were recorded from the monitor that

has the video surveillance system, which is visible to the public. This implies that what was disseminated are not the images captured by the system, but the images recorded from the monitor with a mobile phone.

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter LOPDGDD), the aforementioned complaint was forwarded to the respondent, so that they could analyze it and inform this Agency within one month of the actions taken to comply with the requirements established in data protection regulations. The forwarding, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), was acknowledged on May 13, 2024, as recorded in the acknowledgment of receipt in the file.

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On May 17, 2024, this Agency received a written response from the party being claimed against, indicating that the images are stored for one month and are automatically deleted from the "hard drive." They are unaware of the dissemination of the image captures and also know nothing about the threatening WhatsApp messages, having handed over the surveillance camera to the Civil Guard at the time.

THIRD: On July 18, 2024, in accordance with Article 65 of the LOPDGDD, the complaint submitted by the claiming party was admitted for processing.

LEGAL GROUNDS

I

Competence

According to the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, this Organic Law, the regulatory provisions issued for its development, and, in so far as they do not contradict them, by the general rules on administrative procedures in a subsidiary manner."

II

Preliminary Issues. The image is a personal data

The physical image of a person, according to Article 4.1 of the GDPR, is a "personal data," and its protection is therefore subject to this Regulation.

Article 4.2 of the GDPR defines the concept of "processing" of personal data as "any operation or set of operations performed on personal data or sets of personal data, whether by automated means or not, such as collection, recording, organization, structuring, storage, adaptation or alteration, retrieval, consultation, use, communication by transmission, dissemination, or any other form of enabling access, alignment, combination, restriction, erasure, or destruction."

Images captured by a system of cameras or video cameras are personal data, so their processing is subject to data protection regulations.

Article 6.1 of the GDPR establishes the circumstances that allow the processing of personal data to be considered lawful, and regarding processing for the purposes of video surveillance, Article 22 of the LOPDGDD establishes that natural or legal persons, public or private, may carry out the processing of images through camera or video camera systems for the purpose of ensuring the safety of persons and property, as well as their facilities.

In accordance with the definitions contained in the aforementioned paragraphs 1 and 2 of Article 4 of the GDPR, within the installation of the party being claimed against, the existence of surveillance cameras results in the processing of personal data of citizens accessing it, which entails their

identification or makes them identifiable; not only for the party being claimed against but also for other citizens who may access that information.

III

Unfulfilled Obligation. Duty of confidentiality under Article 5.1.f) GDPR

Article 5.1.f) of the GDPR in relation to the principle of integrity and confidentiality in the processing of data establishes that:

“1. Personal data shall be:

f) processed in such a way as to ensure an appropriate security of personal data, including protection against unauthorized or unlawful processing and against accidental loss, destruction or damage, by means of appropriate technical or organizational measures (integrity and confidentiality).”

The aforementioned principle of confidentiality therefore requires the protection of personal data against unauthorized access, use, and disclosure, as the Recital 39 of the GDPR states:

“[...] Personal data must be processed in a manner that ensures appropriate security and confidentiality of personal data, including to prevent unauthorized access or use of such data and the equipment used for processing.”

In this case, the video provided by the claiming party demonstrates that the images of the two underage males were obtained by a third party allegedly recording with their mobile phone the image projected by the monitor of the video surveillance system, which was visible to the public. That is to say, a third party was able to record with their mobile the monitor that projected the image of two underage males who were purchasing something in the installation of the party being claimed against, and whose image was being captured by the surveillance camera located near the checkout where payments are made. There is therefore evidence that the principle of confidentiality has been violated, as the location of the monitor allowed unauthorized third parties to obtain images of the two minors by recording with a mobile phone the images projected by the monitor. Subsequently, the aforementioned images of the minors were disseminated via WhatsApp.

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In accordance with the evidence available at this moment in the initiation agreement of the sanctioning procedure and without prejudice to the outcome of the instruction, it is considered that the video surveillance system installed inside the facility of the respondent has allowed for a breach of the principle of confidentiality, by exposing to the public the images it captures and that are displayed on the monitor. Access to such images by the public is evidenced by the video provided, which shows the captured images displayed on the monitor and which was subsequently disseminated to unauthorized third parties; consequently, a presumed infringement of the principle of confidentiality established in Article 5.1.f) of the GDPR has been committed.

IV

Classification of the infringement of Article 5.1.f) of the GDPR

If confirmed, the aforementioned infringement of Article 5.1.f) of the GDPR could constitute the commission of the infringement classified in Article 83.5.a) of the GDPR, which states:

“Violations of the following provisions shall be subject to administrative fines of up to 20,000,000 EUR or, in the case of an enterprise, an amount equivalent to 4% of the total annual global turnover of the previous financial year, opting for the higher amount:

a) “The basic principles for processing, including the conditions for consent under Articles 5, 6, 7, and 9.”

In this regard, the LOPDGDD, in its Article 71, establishes:

“Acts and behaviors referred to in paragraphs 4, 5, and 6 of Article 83 of Regulation (EU) 2016/679, as well as those contrary to this organic law, constitute infringements.”

For the purposes of the statute of limitations, Article 72 of the LOPDGDD “Very Serious Infringements” provides:

“1. In accordance with what is established in Article 83.5 of Regulation (EU) 2016/679, the following

infringements are considered very serious and shall be subject to a three-year statute of limitations for substantial violations of the articles mentioned therein, particularly the following:

a) "The processing of personal data in violation of the principles and guarantees established in Article 5 of Regulation (EU) 2016/679. (...)"

V

Proposal for sanction

In order to determine the administrative fine to be imposed, the provisions of Articles 83.1 and 83.2 of the GDPR must be observed, which state:

"1. Each supervisory authority shall ensure that the imposition of administrative fines under this article for the infringements of this Regulation indicated in paragraphs 4, 5, and 6 is, in each individual case, effective, proportionate, and dissuasive.

2. Administrative fines shall be imposed, depending on the circumstances of each individual case, as an additional or substitute measure to those provided for in Article 58, paragraph 2, letters a) to h) and j). In deciding on the imposition of an administrative fine and its amount in each individual case, the following shall be duly taken into account:

a) the nature, gravity, and duration of the infringement, taking into account the nature, scope, or purpose of the processing operation in question, as well as the number of data subjects affected and the level of damage suffered;

b) the intentionality or negligence in the infringement;

c) any measures taken by the data controller or processor to mitigate the damages suffered by the data subjects;

d) the degree of responsibility of the data controller or processor, taking into account the technical or organizational measures they have implemented pursuant to Articles 25 and 32;

e) any previous infringement committed by the data controller or processor;

f) the degree of cooperation with the supervisory authority in order to remedy the infringement and mitigate the possible adverse effects of the infringement;

g) the categories of personal data affected by the infringement;

h) the manner in which the supervisory authority became aware of the infringement, in particular, whether the data controller or processor notified the infringement and, if so, to what extent;

i) when the measures indicated in Article 58, paragraph 2, have been previously ordered against the data controller or processor in relation to the same matter, compliance with those measures;

j) adherence to codes of conduct under Article 40 or to certification mechanisms approved under Article 42;

k) any other aggravating or mitigating factor applicable to the circumstances of the case, such as the financial benefits obtained or the losses avoided, directly or indirectly, through the infringement."

In the present case, in accordance with the transcribed provisions, and without prejudice to the outcome of the instruction of the procedure, the initial assessment of the amount of the fine is 500 euros for the infringement of Article 5.1.f) of the GDPR.

VI

Article 32 of the GDPR

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In the present procedure, the respondent is accused of failing to apply the necessary technical and organizational measures to ensure an adequate level of security in the processing of personal data of citizens who access the respondent's facility and whose images are captured by a video surveillance system installed inside said facility.

This conduct constitutes a violation of the provisions of Article 32.1.b) and 2 of the GDPR, relating to "Security of processing," which states:

"1. Taking into account the state of the art, the costs of implementation, and the nature, scope, context, and purposes of the processing, as well as the varying likelihood and severity of risks to the rights and

freedoms of natural persons, the controller and the processor shall implement appropriate technical and organizational measures to ensure a level of security appropriate to the risk, which may include, among others:

- a) the pseudonymization and encryption of personal data.
- b) the ability to ensure the ongoing confidentiality, integrity, availability, and resilience of processing systems and services.
- c) the ability to restore the availability and access to personal data promptly in the event of a physical or technical incident.
- d) a process for regularly verifying, assessing, and evaluating the effectiveness of the technical and organizational measures to ensure the security of processing.

2. In assessing the appropriateness of the level of security, particular consideration shall be given to the risks presented by the processing of data, in particular as a consequence of the destruction, loss, or accidental or unlawful alteration of personal data transmitted, stored, or otherwise processed, or the unauthorized communication or access to such data.

3. Adherence to an approved code of conduct pursuant to Article 40 or to an approved certification mechanism pursuant to Article 42 may serve as an element to demonstrate compliance with the requirements set out in paragraph 1 of this Article.

4. The controller and the processor shall take measures to ensure that any person acting under the authority of the controller or the processor and having access to personal data may only process such data on instructions from the controller, unless required to do so by Union or Member State law.”

In this case, it is established that the image of the claimant was captured by the video surveillance system installed inside the respondent's facility and has been accessible to third parties.

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To determine the location of the monitor on which the images captured by the video surveillance camera are displayed, we must refer to the video recording provided by the claimant, in which a monitor appears on a white piece of furniture that is displaying, in turn, the store clerk at the counter, attending to two underage boys who seem to be paying for what they have purchased. To the right of the clerk and very close to the counter, where he serves customers, a monitor is visible, which is the same one showing the recording as it is on the same white piece of furniture.

Thus, the location of the monitor was not equipped with security measures to prevent access or capture by a third party of the image of the claimant, since, as mentioned, it has been accessible to those who presumably recorded a video with the image of the monitor and disseminated it.

The respondent, in their capacity as the controller of this processing, should have proactively applied the security measures that were appropriate to assess and ensure a level of security adequate to the probable risks of various natures and severities linked to the types of personal data processing carried out.

According to the evidence available at this moment in the initiation agreement of the sanctioning procedure, and without prejudice to what results from the instruction, it is considered that the fact that the images may have been captured constitutes a lack of measures. Therefore, it is understood that a presumed infringement has been committed for failing to maintain the required security in the processing of data established in Article 32 of the GDPR.

VII

Classification of the infringement of Article 32 of the GDPR

If confirmed, the aforementioned infringement of Article 32 of the GDPR could imply the commission of the infringements classified in Article 83.4 of the GDPR, which states:

“Violations of the following provisions shall be subject to administrative fines of up to 10,000,000 EUR or, in the case of an undertaking, an amount equivalent to 2% of the total worldwide annual turnover of the preceding financial year, whichever is higher:

a) the obligations of the controller and the processor under Articles 8, 11, 25 to 39, 42, and 43; (...)" In this regard, the LOPDGDD, in its Article 71, establishes that: "Acts and conduct referred to in paragraphs 4, 5, and 6 of Article 83 of Regulation (EU) 2016/679, as well as those that are contrary to this organic law, constitute infringements."

For the purposes of the limitation period, Article 73 "Infringements considered serious" of the LOPDGDD indicates:

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"Based on the provisions of Article 83.4 of Regulation (EU) 2016/679, the following violations are considered serious and shall be subject to a two-year statute of limitations, which constitute a substantial breach of the articles mentioned therein, particularly the following:

f) The failure to adopt those technical and organizational measures that are appropriate to ensure a level of security adequate to the risk of processing, as required by Article 32.1 of Regulation (EU) 2016/679."

VIII

Proposal for Sanction

In order to determine the administrative fine to be imposed, the provisions of Articles 83.1 and 83.2 of the GDPR, previously cited in Legal Basis IV, must be observed.

In accordance with the transcribed provisions, and without prejudice to what may result from the instruction of the procedure, the initial assessment of the amount of the fine is €500 for the infringement of Article 32 of the GDPR.

IX

Adoption of Measures

If the infringement is confirmed, it may be agreed to impose on the responsible party the adoption of appropriate measures to adjust their actions to the regulations mentioned in this act, in accordance with the provisions of the aforementioned Article 58.2 d) of the GDPR, under which each supervisory authority may "order the controller or processor to ensure that the processing operations comply with the provisions of this Regulation, where appropriate, in a specified manner and within a specified time frame...".

Within one month, the necessary security measures must be adopted to prevent access or capture, by unauthorized third parties, of images from the monitor displaying the images captured by the video surveillance camera.

The imposition of this measure is compatible with the sanction consisting of an administrative fine, as provided for in Article 83.2 of the GDPR.

It is warned that failure to comply with the possible order to adopt measures imposed by this agency in the sanctioning resolution may be considered an administrative infringement in accordance with the provisions of the GDPR, classified as an infringement in Articles 83.5 and 83.6, which may lead to the initiation of further administrative sanctioning proceedings.

Therefore, in light of the above, by the Director of the Spanish Agency for Data Protection,

IT IS AGREED:

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FIRST: TO INITIATE SANCTIONING PROCEDURE against A.A.A., with NIF ***NIF.1, for the alleged infringement of Article 5.1.f) of the GDPR and Article 32 of the GDPR, classified under Article 83.4.a) of the GDPR and Article 83.5.a) of the GDPR.

SECOND: TO APPOINT R.R.R. as instructor and S.S.S. as secretary, indicating that they may be recused, if applicable, in accordance with the provisions of Articles 23 and 24 of Law 40/2015, of October 1, on the Legal Regime of the Public Sector (LRJSP).

THIRD: TO INCORPORATE into the sanctioning file, for evidentiary purposes, the complaint filed by the claimant and its attached documentation, as well as the documents obtained and generated by the General Subdirector of Data Inspection in the proceedings prior to the initiation of this sanctioning procedure.

FOURTH: THAT for the purposes provided in Article 64.2 b) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, the sanction that may correspond would be, without prejudice to what may result from the instruction:

- For the alleged infringement of Article 5.1.f) of the GDPR, classified under Article 83.5.a) of that regulation, an administrative fine of €500.

- For the alleged infringement of Article 32 of the GDPR, classified under Article 83.4.a) of that regulation, an administrative fine of €500.

FIFTH: TO NOTIFY this agreement to A.A.A., with NIF ***NIF.1, granting a hearing period of ten working days for them to submit allegations and present any evidence they deem appropriate. In their written allegations, they must provide their NIF and the file number indicated in the heading of this document.

If no allegations are made regarding this initiation agreement within the stipulated period, it may be considered a proposal for resolution, as provided in Article 64.2.f) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP).

In accordance with the provisions of Article 85 of the LPACAP, they may acknowledge their responsibility within the period granted for the submission of allegations to this initiation agreement; this will entail a 20% reduction of the sanction to be imposed in this procedure. With the application of this reduction, the sanction would be set at €800, resolving the procedure with the imposition of this sanction.

Likewise, they may, at any time prior to the resolution of this procedure, voluntarily pay the proposed sanction, which will imply a 20% reduction of its amount. With the application of this reduction, the sanction would be set at €800, and its payment will imply the termination of the procedure, without prejudice to the imposition of the corresponding measures.

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The reduction for the voluntary payment of the sanction is cumulative with the one that corresponds to be applied for the acknowledgment of responsibility, provided that this acknowledgment of responsibility is made evident within the period granted to submit allegations regarding the opening of the procedure. The voluntary payment of the amount referred to in the previous paragraph may be made at any time prior to the resolution. In this case, if both reductions are applicable, the amount of the sanction would be established at 600.00 euros.

In any case, the effectiveness of either of the two mentioned reductions will be conditioned upon the express withdrawal or renunciation of any action or appeal in the administrative pathway against the sanction.

For these purposes, in the event of opting for either of them, a communication of express withdrawal or renunciation of any action or appeal in the administrative pathway against the sanction must be sent to the General Sub-Directorate of Data Inspection, indicating which of the two reductions is being opted for or if it is for both.

In the event that you choose to proceed with the voluntary payment of either of the amounts indicated above (800.00 euros or 600.00 euros), you must make it effective by depositing it into account No. IBAN: ES00-0000-0000-0000-0000-0000 (BIC/SWIFT Code: CAIXESBBXXX) opened in the name of the Spanish Agency for Data Protection at the banking entity CAIXABANK, S.A., indicating in the concept the reference number of the procedure that appears in the heading of this document and the

reason for the reduction of the amount to which you are adhering.

Likewise, you must send the proof of deposit to the General Sub-Directorate of Inspection along with the express communication of withdrawal or renunciation of any action or appeal in the administrative pathway against the sanction to continue with the procedure in accordance with the amount deposited. The procedure will have a maximum duration of twelve months from the date of the initiation agreement. If this period elapses without a resolution being issued and notified, it will expire, and consequently, the file will be archived; in accordance with the provisions of Article 64 of the LOPDGDD.

Finally, it is noted that according to the provisions of Article 112.1 of the LPACAP, there is no administrative appeal against this act.

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Mar España Martí

Director of the Spanish Agency for Data Protection

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SECOND: On October 30, 2024, the respondent has proceeded to pay the sanction in the amount of 600 euros making use of the two reductions provided for in the previously transcribed Initiation Agreement, which implies the acknowledgment of responsibility.

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THIRD: The payment made, within the period granted to submit allegations regarding the opening of the procedure, entails the renunciation of any action or appeal in the administrative pathway against the sanction and the acknowledgment of responsibility concerning the facts referred to in the Initiation Agreement and its legal qualification.

FOURTH: In the previously transcribed Initiation Agreement, it was indicated that, if the infringement is confirmed, measures could be imposed on the responsible party to adjust their actions to the regulations mentioned in this act, in accordance with the provisions of the aforementioned Article 58.2 d) of the GDPR, according to which each supervisory authority may “order the controller or processor to ensure that the processing operations comply with the provisions of this Regulation, where appropriate, in a specified manner and within a specified period...”.

Having acknowledged the responsibility for the infringement, the imposition of the measures included in the Initiation Agreement is appropriate.

LEGAL GROUNDS

I

Competence

In accordance with the powers granted by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), to each supervisory authority and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and the guarantee of digital rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states that: “The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued in its development and, as long as they do not contradict them, subsidiarily by the general rules on administrative procedures.”

II

Termination of the procedure

Article 85 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), under the heading “Termination in sanctioning procedures” provides the following:

“1. Once a sanctioning procedure has been initiated, if the offender acknowledges their responsibility,

the procedure may be resolved with the imposition of the appropriate sanction.

2. When the sanction is solely of a pecuniary nature or when a pecuniary sanction and another of a non-pecuniary nature can be imposed, but the justification has been provided...”

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In the event of the inadmissibility of the second, voluntary payment by the alleged responsible party, at any time prior to the resolution, will imply the termination of the procedure, except with respect to the restoration of the altered situation or the determination of compensation for the damages caused by the commission of the infringement.

3. In both cases, when the sanction is solely of a pecuniary nature, the competent authority to resolve the procedure will apply reductions of at least 20% on the amount of the proposed sanction, which may be cumulative. The aforementioned reductions must be specified in the notification of the initiation of the procedure, and their effectiveness will be conditioned upon the withdrawal or renunciation of any action or administrative appeal against the sanction. The percentage of reduction provided in this section may be increased by regulation.

In accordance with the above,

the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO DECLARE the termination of procedure EXP202406577, in accordance with the provisions of Article 85 of the LPACAP.

SECOND: TO ORDER A.A.A. to notify the Agency of the adoption of the measures described in the legal grounds of the Agreement of initiation transcribed in this resolution, within 1 month from the date this resolution becomes firm and enforceable.

THIRD: TO NOTIFY this resolution to A.A.A.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure as provided by Article 114.1.c) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, the interested parties may file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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